

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN REYES, II
HEARING DATE: 04/15/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 14 below. The CMC is reset to July 17, 2026.

2. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
*CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 16 below.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)
FILED BY:**

TENTATIVE RULING:

Defendant Miller filed this motion for attorney's fees and costs incurred in successfully opposing an appeal by plaintiff. On the original motion hearing date, the Court noted that there was no proof that the motion had been served on the opponent, and continued the motion to today with directions that the moving party must provide proper proof of service. Nothing has been filed since then, and there is still no indication that the motion was served, or that plaintiff is even aware of its existence. The motion is accordingly **denied** for failure to serve the motion and to comply with the Court's prior order.

4. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL
FILED BY: WHEATON, R.N., JEFF**

TENTATIVE RULING:

The calendaring of events in this case is a confusing spider web of events. The bottom line, however, is that we need to ascertain whether plaintiff's counsel is or is not going to continue to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

There are three summary judgment motions on today's calendar, two of which were only belatedly added onto this calendar. Plaintiff, however, has sought to continue those motions because she asserts she needs some still-pending discovery in order to respond to them. Her own motion to compel the discovery she says she needs for that purpose is calendared for June 17.

There is also a motion to file under seal. Two related motions to file under seal, however, have been noticed for April 29, coinciding with a CMC set for that date. Even absent other concerns, the summary judgments should await ruling on the motions to seal.

And perhaps most consequentially, plaintiff's counsel has filed a motion for leave to withdraw from the representation, also calendared for June 17.

We need to find out whether plaintiff is going to continue pursuing this case, and if so, whether with

present counsel, with replacement counsel, or in pro per. Accordingly, **the Court issues the following scheduling orders:**

1. The CMC now set for April 29 will remain on calendar.
2. The three motions to file under seal (one calendared for today, the other two for April 29) are all set for hearing on April 29.
3. The motion to withdraw as counsel will remain on calendar for June 17.
4. The pending summary judgment motions, and the motion to compel discovery, are taken off calendar for now, at least temporarily, until we have sorted out plaintiff's representation situation.

The Court does not think it fair to advance the hearing on the motion to withdraw to April 29, given that plaintiff will need time to figure out her intended response to that motion. However, it is intended that a major topic of discussion at the April 29 CMC will be what, if anything, can be determined concerning the intentions of plaintiff and her counsel about continuing the lawsuit and with what representation. Assuming that the lawsuit will be going forward, it is the hope of the Court that we may be able to set new dates for the motion to compel and the summary judgment motions at the April 20 CMC.

5. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION FILED BY DEFENDANT JEFF WHEATON, RN
FILED BY: DEFENDANT JEFF WHEATON, RN
TENTATIVE RULING:

See Line 4 above.

6. 9:00 AM CASE NUMBER: C23-02347
CASE NAME: KRISTIN CASEY VS. KRIS HANSEN
***HEARING ON MOTION IN RE: QUASH SUBPOENAS AND FOR PROTECTIVE ORDER**
FILED BY: CASEY, KRISTIN
TENTATIVE RULING:

By stipulated request of the parties, this motion is **continued** to July 15, 2026.

7. 9:00 AM CASE NUMBER: C23-02723
CASE NAME: AMADOR RAMIREZ VS. M.O. DION AND SONS, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**
FILED BY: RAMIREZ, AMADOR
TENTATIVE RULING:

Plaintiff Amador Ramirez moves for preliminary approval of his class action and PAGA settlement with defendant M.O. Dion and Sons. The motion is **granted**.

A. Background and Settlement Terms

Defendant is a petroleum distributor with several distribution facilities in California. Plaintiff worked there as a delivery driver.

The original complaint was filed on October 26, 2023.

The settlement would create a gross settlement fund of \$500,000. The class representative payment to the plaintiff would be \$10,000. Attorney's fees would be \$166,667 (one-third of the settlement). Litigation costs would not exceed \$15,000. The settlement administrator's costs are estimated at \$10,000. PAGA penalties would be \$50,000, resulting in a payment of \$37,500 to the LWDA. The net amount paid directly to the class members would be about \$248,333. The fund is non-reversionary. There are an estimated 500 class members. Based on the estimated class size, the average net payment for each class member is approximately \$500. The individual payments will vary considerably, however, because of the allocation formula prorating payments according to the number of weeks worked during the relevant time.

The entire settlement amount will be deposited with the settlement administrator within 10 days after the effective date of the settlement.

The proposed settlement would certify a class of all current and former non-exempt employed at Defendants' California facilities between August 22, 2022 and November 27, 2024.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

A list of class members will be provided to the settlement administrator within 20 days after preliminary approval. The administrator will use skip tracing as necessary. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Settlement checks not cashed within 180 days will be cancelled, and the funds will be directed to the California Fire Foundation as a *cy pres* recipient.

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ("A court cannot release claims that are outside the scope of the allegations of the complaint.") "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal discovery was undertaken, resulting in the production of substantial documents. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies. For example, much of plaintiff's allegations centers on possible off-the-clock work, including missed or skipped meal breaks and rest breaks. Defendant, however, pointed out that its formal policies prohibit off-the-clock work, and asserted that it would have had no knowledge of employees beginning work before punching in or continuing after punching out. Further, it argued that it was required to make meal and rest breaks available, but not required to ensure that they be taken, so long as no employer policy prevented or

discouraged taking such breaks. As to unreimbursed employee expenses (such as cell phone use, mileage, and masks), plaintiff would have been called on to show that such expenses were in fact incurred, were reasonably necessary to job performance, and were unreimbursed. Furthermore, the fact-intensive character of such claims would have presented a serious obstacle to class certification.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code § 2699(e)(2) (PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”)) Moreover, recent decisions may make it difficult for PAGA plaintiffs to recover statutory penalties, as opposed to actual missed wages. (See, e.g., *Naranjo v. Spectrum Security Services, Inc.* (2023) 88 Cal.App.5th 937; but see *Gola v. University of San Francisco* (2023) 90 Cal.App.5th 548, 566-67.)

[Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.]

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees”. (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “The court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “Where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney Fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund”

theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

D. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY JUDGMENT (ADVANCED FROM 8/19/26)**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

These are two motion to file confidential portions of a summary judgment motion under seal. The motions are unopposed and uncontroversial. For unexplained reasons, however, the parties have stipulated to request that the motion hearings be continued a week. They are therefore **continued** to April 22.

9. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

See Line 8 above.

10. 9:00 AM CASE NUMBER: C24-01993
CASE NAME: ROSEMARIE TUNICK VS. EAST BAY MUNICIPAL UTILITY DISTRICT
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Town of Moraga's Motion for Summary Judgment.

The Defendant's Request for Judicial Notice is denied because the Court doesn't require judicial notice as to the files in this case. However, it appreciates the convenience of having the documents pulled out for inspection.

For the following reasons, Defendant's MSJ is **denied** as outlined below.

Factual Allegations

This matter pertains to an alleged trip and fall that occurred on September 8, 2023, on a sidewalk located adjacent to the Moraga Country Club Golf Course in Moraga, California. On that date, Plaintiff alleges she was walking on the public sidewalk when her right foot caught on an uneven asphalt 'patch' used to repair a trench, causing her to fall. She alleges this was a dangerous condition.

On February 9, 2024, Plaintiff, through her counsel, submitted a "Claim Presented to the Town of Moraga" Form 4.1 ("Claim Form") to the Town of Moraga. (Brunner Decl. ¶ 2 Ex. 1.) The Claim Form includes 9 separate sections/questions requesting specific information related to the incident. (*Ibid.*) While sections 1, 2, 8, and 9 are filled in, sections 3-5, and 7 merely state: "See Attachment A" [all caps removed], and section 6 is left blank. (*Ibid.*) Attached to the Claim Form is four-page document titled: "Claim for Personal Injury." It includes a description of the parties, the incident, alleged liability, causes of action, and a demand.

The Town of Moraga ("Town" or "Defendant") received the Claim Form and attachment on July 9, 2024. (UMF 12.) On February 14, 2024, the Town provided Plaintiff's counsel with a Notice of Insufficient Claim ("Notice"), pursuant to Government Code section 910.8. (UMF 13.) The Notice indicted that the Claim Form was insufficient for two reasons. First, that it failed to "state the date, place or other circumstances of the occurrence, event or transaction which gave rise to the claim being asserted." Second, under "Other" the Town indicated that the "details provided about the incident location are not detailed enough for the Town to locate the specific incident location." (Brunner Decl. Ex. 2.)

The Town did not receive any response to the Notice. (UMF 15.) Plaintiff did not submit any amendment to the Claim Form. (UMF 16.) Plaintiff filed the Complaint in this matter on July 26, 2024, alleging a single cause of action for "Personal Injury." Plaintiff filed the operative First Amended Complaint on September 22, 2025, alleging claims for (1) dangerous condition of public property and (2) vicarious liability for employee negligence, against moving Defendant.

Technical Defects in Plaintiff's Papers

Plaintiff's opposition papers are frankly sloppy and unprofessional in a number of respects. Given that the substance of the motion relates to the technical adequacy of plaintiff's notice of claim, it is poor

tactics at best for plaintiff not to make a better effort on easy technical compliance matters.

- **Page Numbers and Footer:** “Each page must be numbered consecutively at the bottom unless a rule provides otherwise for a particular type of document. The page numbering must begin with the first page and use only Arabic numerals (e.g., 1, 2, 3). The page number may be suppressed and need not appear on the first page.” (Cal. R. Ct. 2.109.) In addition, the footer of the document “must contain the title of the paper (examples: ‘Complaint,’ ‘XYZ Corp.’s Motion for Summary Judgment’) or some clear and concise abbreviation.” (Cal. R. Ct. 2.110.) Plaintiff’s Opposition fails to include page numbers anywhere and the footer improperly says “Points and Authorities” on every page. When the Court references the Opposition papers it begins numbering on the page where the Introduction starts.
- **Electronic Bookmarks:** Plaintiff’s counsel submits a declaration which attaches several documents. “[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff’s counsel’s declaration in support of his Opposition attaches five separate exhibits but fails to include bookmarks to any of the exhibits.
- **Citation to State Trial Court Opinions:** In Opposition, Plaintiff cites several trial court opinions. “Trial court decisions are not precedents binding on the other courts under the principal of stare decisis.” (*Harrott v. County of Kings* (2001) 25 Cal.4th 1138, 1148; see also *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761 “[A] written trial court ruling has no precedential value.”). As “trial court orders hold no precedential value [citation]” the Court will not rely upon these orders. (*City of Bakersfield v. West Park Home Owners Assn. & Friends* (2016) 4 Cal.App.5th 1199, 1210.)
- **Response to Separate Statement:** When responding to a separate statement, the “response must unequivocally state whether that fact is ‘disputed’ or ‘undisputed.’ (Cal. R. Ct. 3.1350 (f)(2).) “An opposing party that contends that a fact is disputed must state ... the nature of the dispute and describe the evidence that supports the position that the fact is controverted.” (*Ibid.*) “Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line number.” (*Ibid.*)
Plaintiff indicates that many of the UMFs are undisputed. As to the other UMFs, Plaintiff does not state that they are “disputed,” but instead provides commentary related to the UMF. Some appear to dispute the wording of the UMF (e.g. 2, 8, 11), while others appear to be objections (e.g. 6), and others just include statements without citation to any facts or evidence in support (e.g. 13-14, 17-19.)
To the extent the response purports to be an objection, it fails to comply with the requirements for objections. All written objections must be contained in a *separate* document from the separate statement and must conform to the format set forth in CRC 3.1354(b). The party submitting the written objections “must submit with the objections a proposed order.” (CRC 3.1354(c).) This did not occur.
As Plaintiff failed to properly ‘dispute’ any of the facts set forth by the Town, the

Court will deem all of the facts to be undisputed.

Plaintiff's counsel is reminded to comply with the Rules of Court when submitting papers to the Court.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law." (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353, quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.'" (*Ibid.* quoting *Aguilar*, 174 Cal.App.4th at 851.)

Analysis

The Town's MSJ focuses on the Claim Form submitted by Plaintiff. It argues that the Claim Form is insufficient to qualify as a 'written claim' under applicable law. Specifically, the Town of Moraga argues that "Plaintiff failed to satisfy two of the statutorily required elements set forth at Government Code section 910(c) and 910(f)...." (Notice at 2:11-12.)

Claim Presentation

Under the California Tort Claims Act, a public entity is not liable for an injury arising from an act or omission except as provided by statute." (*Creason v. Department of Health Services* (1998) 18 Cal.4th 623, 630.) "There is no common law governmental tort liability in California; and except as otherwise provided by statute, there is no liability on the part of a public entity for any act or omission of itself, a public employee, or any other person." (*Gibson v. City of Pasadena* (1978) 83 Cal.App.3d 651, 655 quoting *Cowing v. City of Torrance* (1976) 60 Cal.App.3d 757, 761.)

Under the Claims Act no suit can be brought against a public entity under "a claim has been filed with the relevant public entity and either the public entity acts on it or it is deemed to have been denied by operation of law." (*Alliance Financial v. City and County of San Francisco* (1998) 64 Cal.App.4th 635, 642.) "Section 945.4 of the California Government Code provides that no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented until a written claim has been presented to the public entity and has been rejected in whole or in part." (*Dilts v. Cantua Elem. Sch. Dist.* (1987) 189 Cal.App.3d 27, 31.) "Presentation of a

claim, when required by law, is a mandatory prerequisite to maintenance of any cause of action against a public entity.” (*Ibid.*)

Government Code section 910 sets forth the information required to be included in a government claim. Relevant to the Town’s MSJ, section 910 states:

A claim shall be presented by the claimant or by a person acting on his or her behalf and shall show all of the following:

...

(c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claims asserted.

...

(f) The amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.

Subdivision (f) - Damages

The Court notes that the Town’s argument regarding this issue is a bit confusing, so the Court will do its best to outline the argument and address the issue. The Town notes that the Claim Form does not contain the requested and required information, but instead “is exclusively reliant on reference to ‘Attachment A.’” (MSJ at 6:27-7:3.) It then claims that “[n]owhere in Plaintiff’s claim is there a specific total dollar amount Plaintiff was claiming as a result of her alleged injuries, as is statutorily required.” (*Id.* at 7:8-9.) There are a couple of problems with this argument.

Regarding the failure to include a ‘specific total dollar amount’ the Town correctly notes that the Claim Form does not include an amount claimed:

6. Claim amount (only if less than \$10,000):

If the amount exceeds \$10,000, please check the court for appropriate jurisdiction:

_____ Municipal Court (claims up to \$25,000) _____ Superior Court (claims over \$25,000)

Importantly, however, the Claim Form makes clear that the specific amount claimed is only required if that amount is “less than \$10,000.” This tracks the requirements of subdivision (f) quoted above. A party is only required to provide a specific amount sought if that amount is less than \$10,000. “If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim.” (Gov’t Code § 910 (f).)

The Claim Form does request that the party indicate, if the claim exceeds \$10,000, whether the claim is above or below \$25,000, which is consistent with the requirement under subdivision (f) that such a claim “indicate whether the claim would be a limited civil case.” (*Ibid.*) The Town appears to argue that Plaintiff failed to include this information. It is true that Plaintiff did not check one of the two

options noted above. She did, however, indicate that her claim was well in excess of \$25,000 – despite the Town’s claims to the contrary.

The Town contends that Attachment A fails to include the amount of damages sought. It claims that Attachment A states, in pertinent part:

A demand is herewith made for settlement purposes only and inadmissible under Evidence Code 1152 in the sum of []¹. This offer shall expire 45 days from the date hereof.” (UMF 9, Brunder Decl. Ex. 2.) The footnote indicates that the bracket was “Intentionally left blank.” (*Ibid.*, MSJ at 2:26-3:2.)

Plaintiff, in response, argues that this is an “abhorrent misrepresentation of material fact to the court.” (UMF 9 Response.) Plaintiff is correct that this is a misrepresentation of what was contained in Attachment A to the Claim Form. Below is the text from Attachment A:

A demand is herewith made for settlement purposes only and inadmissible under Evidence Code section 1152 in the sum of **\$750,000**. This offer shall expire 45 days from the date hereof.

While the wording is styled as a settlement demand, it does include a total amount of damages sought. It was unclear why the Town removed this number, which is even in bold in the original document, from its description of the Attachment.

On Reply, the Town indicates that it “opted to honor the inadmissibility of a settlement demand pursuant to Evidence Code section 1152 and not display the demanded settlement amount in a publicly filed pleading, i.e., defendant intentionally left blank the demanded amount.” (Reply at p.6 fn.5.) This explanation, however, does not explain why the Town then filed the complete letter as Exhibit 1 to the Briner Declaration without redacting that number out. The excerpt above came from that document. It also does not explain why the Town did not indicate in its opening papers that a number was provided, but they were intentionally leaving the exact amount out for the reasons stated. For example, indicating “redacted” instead of making it appear that Plaintiff ‘intentionally left blank’ the amount.

Related to this issue is the applicability of Evidence Code section 1152. That section provides, in pertinent part:

Evidence that a person has ... furnished or offered or promised to furnish money or any other thing, act, or service to another who has sustained ... loss or damage ... is inadmissible to prove his or her liability for the loss or damage or any part of it. (Evid. Code § 1152 (a).)

Evidence Code section 1152 only prohibits the use of a settlement document to prove liability for the damage or loss at issue. It is not an “absolute bar[] to admissibility, since a settlement document may be admissible for a purpose other than providing liability.” (*Volkswagen of America, Inc. v. Superior Court* (2006) 139 Cal.App.4th 1481, 1491.) Thus, Attachment A, even if it is considered a ‘settlement demand’ is admissible and can be used to establish that Plaintiff did in fact include an amount at issue

related to her claim.

While Plaintiff did not check one of the blanks at line 6 indicating whether her claims was a claim up to, or over, \$25,000, her demand for \$750,000 makes clear that her claim would not be a limited civil case – which is all that is required under Government Code section 910, subdivision (f).

As to the Town’s argument that Plaintiff failed to provide the breakdown of the total amount claimed – requested at section 7 of the Claim Form, such an analysis is **not** required by the Government Code. As such, failure to provide such information in the Claim Form does not indicate Plaintiff’s claim presentation was deficient.

It is also worth noting that the Town’s Notice of Insufficient Claim did not indicate that the failure to include the amount of damages was a basis for the Town considering the claim to be insufficient:

“[C]laims are not required to be technically perfect.” (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1234.) “The claim need only substantially comply with all of the statutory requirements.” (*Ibid.*) Here, with respect to the damages sought by Plaintiff, the claim substantially complies in that the information submitted to the Town indicates that Plaintiff is seeking more than \$25,000 in damages – *i.e.* her claim is not a limited civil case.

“Furthermore, if a claim presented does not substantially comply with the claim filing requirement, the public entity must advise the claimant of the deficiencies or lose the right to assert the noncompliance as an affirmative defense.” (*Ibid.*) The Town failed to inform Plaintiff that it believed her claim was deficient for failure to indicate the amount of damages sought. As such, it has waived its right to assert that element as a basis for the alleged noncompliance.

Subdivision (c) – Location of the Incident

The Town’s second argument is that Plaintiff’s Claim failed to properly identify the location of her alleged fall. Attachment A to the Claim Form indicated the location as:

Location of Incident:	Approximately 974 Moraga Way Moraga, California Near Moraga Country Club Golf Course
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The Town submits the declarations of Brian Horn, Principal Planner of the Town’s Planning Department, and Shawn Knapp, the Director of Public Works Department for the Town. Both individuals declare that the street address of 974 Moraga Way “does not exist.” (Horn Decl. ¶ 2; Knapp Decl. ¶ 4.) Neither of the individuals explain what records they reviewed or the process they used to determine the address does not exist. Mr. Knapp goes on to declare that “no relative measurements from known object(s)” were provided which would have allowed the Town to determine where the incident occurred.

Plaintiff counters that the description above “contains two independent locations references: (1) an approximate street address along Moraga Way, and (2) a well-known local landmark – the Moraga County Club Golf Course.” (Opp. at 3:13-14.) “The use of the qualifier ‘Approximately’ demonstrates the claimant was providing her best estimate, not asserting a precise address. Together with the landmark reference, this narrowed the location to a specific and identifiable stretch of public

sidewalk.” (*Id.* at 3:14-16.)

Even if the Court finds that the exact address of 974 Moraga Way is not an actual location, the Town does not explain why the description of along Moraga Way near Moraga Country Club Golf Course was insufficient. Per section 910, a claimant must indicate the “place ... which gave rise to the claim asserted.” (Gov’t Code § 910 (c).) “Place” is not defined, nor does the statute provide any indication as to the manner in which the “place” must be described. The Town does not cite any authority which indicates that an exact address is required.

Instead, the Town discusses the ‘substantial compliance’ test and contends that Plaintiff failed to meet its requirements. As the Town’s authority states, “courts employ the test of substantial compliance rather than strict compliance in deciding whether a plaintiff has met the requirements of the Tort Claims Act.” (*Dilts v. Cantua Elem. Dist.* (1987) 189 Cal.App.3d 27, 33.) The test was set forth by the California Supreme Court in *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, wherein the Court concludes “that to gauge the sufficiency of a particular claim, two tests shall be applied: Is there *some* compliance with *all* of the statutory requirements; and, if so, is this compliance sufficient to constitute *substantial* compliance?” (*Ibid.* quoting *City of San Jose* 12 Cal.3d at 456-57.)

“Where there has been *an attempt to comply but the compliance is defective*, the court must ask whether sufficient information is disclosed on the face of the filed claim to reasonably enable the public entity to make an adequate investigation of the merits of the claim to settle it without expensive litigation.” (*Ibid.*) “So long as the purposes of the claims statute are effectuated, its requirements should be given a liberal construction in order to permit full adjudication of the case on its merits.” (*Ibid.*)

While the Town claims that the information provided by Plaintiff fails to provide sufficient information for it to be able to determine where the incident occurred, it does not explain why the information is insufficient. Even if the exact location does not exist, Plaintiff indicated that the accident occurred on Moraga Way near Moraga Country Club Golf Course. This appears to be a relatively specific location.

As the California Supreme Court explained, the purpose of section 910 “is ‘to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation.’” (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446.) “Consequently, a claim need not contain the detail and specificity required of a pleading, but need only ‘fairly describe what [the] entity is alleged to have done.’” (*Ibid.* citation omitted.) “When a notice contains the information necessary for that purpose [i.e. to provide sufficient information for the entity to investigate], it is substantial compliance with the statute.” (*Mace v. Pasadena* (1962) 199 Cal.App.2d 522, 526.)

“As the purpose of the claim is to give the government entity notice sufficient for it to investigate and evaluate the claim, not to eliminate meritorious actions [citation], the claims statute ‘should not be applied to snare the unwary where its purpose has been satisfied.’” (*Ibid.* citations omitted.) “It must also be noted that California courts have taken a liberal view of claims statutes where a reasonable attempt has been made to comply with the law in good faith.” (*Mace*, *supra*, 199 Cal.App.2d at 525.)

In *Johnson v. Los Angeles* (1955) 134 Cal.App.2d 600, the claim related to a plaintiff tripping on a

defective sidewalk. The claim presented indicated that it occurred at the *southeast* corner of 82nd and Main Street, when it actually occurred at the *southwest* corner of that intersection. (*Id.* at 601.) The description of the location was deemed to be sufficient. Thus, giving the general location was sufficient to meet the requirement to indicate the place of the incident.

In *Johnson v. Oakland* (1961) 188 Cal.App.2d 181, the claim submitted by Plaintiff indicated that the incident (a fall on a defective sidewalk) occurred in front of 1819 **34th** Avenue, Oakland when it in fact occurred in front of 1819 **35th** Avenue, Oakland. (*Id.* at 182.) Defendant filed a motion for summary judgment arguing, in part, that the claim failed to properly identify the location of the incident and was therefore defective. The trial court granted the motion. The Court of Appeal found that Plaintiff substantially complied with the requirement to indicate the place of the incident and held that the “motion for summary judgment should not have been granted.” (*Id.* at 184.) The Court of Appeal did note that the Defendant still had the right to show that plaintiff’s actions were due to lack of good faith with the intent to mislead. That issue, however, would need to be tried.

Here, the address referenced (974 Moraga Way) may not exist. However, the Town has failed to show that the general description that the incident occurred on Moraga Way “near Moraga Country Club Golf Course,” was so inadequate that it failed to provide it “sufficient information to enable it to adequately investigate” the claim. At a minimum, the issue as to whether the above description is sufficient to meet the requirements of Government Code section 910 is a factual question to be determined by the trier of fact.

As the moving party, the Town has the burden to show that one or more elements of the claim cannot be established. (Code Civ. Proc. § 437c (p)(2).) “Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists....” (*Ibid.*) “[T]here is no obligation on the opposing party (plaintiff[]) here) to establish anything by affidavit unless and until the moving party (defendant here) has by affidavit stated ‘facts establishing *every element* necessary to sustain a judgment in his favor.’” (*Canifax v. Hercules Powder Co.* (1965) 237 Cal.App.2d 44, 50.) As such, the Town’s arguments relating to Plaintiff’s failure to present admissible evidence do not come into play – as the Town has failed to meet its initial burden. As such, Plaintiff is not required to produce any evidence in response.

Additionally, it is the Defendants burden to “present evidence that the plaintiff does not possess, **and cannot reasonably obtain**, needed evidence....” (*Aguilar*, 25 Cal.4th at 855 emphasis added.) This can be done, for example, via “admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (*Ibid.* emphasis added.) While Defendant objects to Plaintiff’s evidence relating to the Google Maps information and the Town’s employee’s use thereof, it does not show or even argue that Plaintiff cannot correct the evidentiary issues and get such evidence admitted. Plaintiff may be able to present admissible evidence that the address indicated, while not an official recorded address, nonetheless provides sufficient information for the Town to ascertain where the injury occurred if an ‘adequate investigation’

Conclusion

Defendant’s Motion for Summary Judgment is **denied**.

Evidentiary Issues

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

11. 9:00 AM CASE NUMBER: C24-02244

CASE NAME: JOAQUIN RECINOS VS. AMPORTS, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS AND PAGA SETTLEMENT**

FILED BY: RECINOS, JOAQUIN

TENTATIVE RULING:

Plaintiff Joaquin Recinos moves for preliminary approval of his class action and PAGA settlement with defendant Amports, Inc. The motion is **granted**.

E. Background and Settlement Terms

Amports is a large-scale automobile processor, in the business of handling the logistics of shipping large quantities of vehicles from manufacturers on their way to dealerships, including such related functions as installations, tracking, and inspections. It operates a number of large facilities, including in Antioch and Benicia. As will be seen, the large physical size of the facilities is central to the issues in the case.

Highly unusually among wage-and-hour class actions and PAGA cases, this case does not center on allegations of underpaid wages, unallowed rest and meal breaks, off-clock work, and the like. Instead, it focuses entirely on unpaid employee use of personal cell phones for conducting Amports's business. Only facility managers are issued company-provided phones. The central theory of the complaint is that lower-level employees are also required to use their cells to do their jobs, but they are not compensated for such use.

The original complaint was filed on August 21, 2024, asserting class-action claims and a PAGA claim.

The settlement would create a gross settlement fund of \$210,000. The class representative payment to the plaintiff would be \$5,000. Attorney's fees would be \$70,000 (one-third of the settlement). Litigation costs would not exceed \$15,000. The settlement administrator's costs are estimated at \$10,000. PAGA penalties would be \$10,000, resulting in a payment of \$6,500 to the LWDA. The net amount paid directly to the class members would be about \$103,500. The fund is non-reversionary. There are an estimated 299 class members. Based on the estimated class size, the average net payment for each class member is approximately \$346. The individual payments will vary considerably, however, because of the allocation formula prorating payments according to the number of weeks worked during the relevant time.

The entire settlement amount will be deposited with the settlement administrator within 7 days after the effective date of the settlement.

The proposed settlement would certify a class of all current and former non-exempt employed at Defendants' California facilities between August 21, 2020 and July 29, 2025.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class

period.

The names of class members are known from records, but any not located will be searched on an address database. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Settlement checks not cashed within 180 days will be cancelled, and the funds will be directed to the unclaimed property fund.

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 (“A court cannot release claims that are outside the scope of the allegations of the complaint.”) “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal discovery was undertaken, resulting in the production of substantial documents. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies. For example, Amports contends that its written policies forbid use of personal cells, and that walkie-talkies are provided.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code § 2699(e)(2) (PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”)) Moreover, recent decisions may make it difficult for PAGA plaintiffs to recover statutory penalties, as opposed to actual missed wages. (See, e.g., *Naranjo v. Spectrum Security Services, Inc.* (2023) 88 Cal.App.5th 937; but see *Gola v. University of San Francisco* (2023) 90 Cal.App.5th 548, 566-67.)

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

F. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of

civil penalties between the affected aggrieved employees”. (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “The court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “Where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

G. Attorney Fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

H. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

12. 9:00 AM CASE NUMBER: C25-00221

CASE NAME: GRAVES CONSTRUCTION GROUP SERVICES, INC. VS. ELITE MD, INC., A CALIFORNIA CORPORATION

HEARING ON DEMURRER TO: CROSS-COMPLAINT OF ELITE MD, INC.

FILED BY: JUDDS ALL TRADE INC

TENTATIVE RULING:

Cross-defendant Judds All-Trade Inc. demurs to the cross-complaint filed by Elite MD. (Judds is named in the cross-complaint as All-Trade Engineering & Design; the cross-complaint never mentions “Judds”. The demurrer acknowledges the name used in the cross-complaint as a dba of Judds, however, and apparently it is not disputed that the demurring party is the entity being sued in the cross-complaint as All-Trade. The Court will use that name for convenience.)

The demurrer is unopposed, and it is **sustained** with leave to amend.

Elite is the customer on a construction project to build out a medical office. The general contractor, Graves, sues Elite for collection. Elite brought this cross-complaint against Graves and several businesses alleged to be subcontractors or service providers to Graves, alleging in extremely vague and general terms that the construction featured delays and defects. All-Trade is mentioned in the cross-complaint only in the initial listing of parties, with the allegation that it “performed architectural, engineering and design services for Elite”. It is not alleged, however, that there existed any direct contractual relation between Elite and All-Trade.

All-Trade (and the other alleged subs) are sued only in Count 2 on a third-party-beneficiary contract theory, and in Count 3 for general negligence. As All-Trade correctly states, however, the cross-complaint is entirely devoid of the slightest factual allegation as to what duties any of these subs was contracted to perform, or what they are alleged to have done wrong or not done right. There is no factual allegation of what breaches of contract or duty Elite claims to have suffered. It appears that the relevant text of the cross-complaint was likely copied verbatim out of a formbook somewhere.

If Elite actually thinks it has any factual basis for a claim against All-Trade, it may amend to allege one. If it doesn’t, it should drop All-Trade as a party. A first amended cross-complaint may be filed and served by May 8. If none is filed by then, it will be taken that Elite is acknowledging that it has no viable claim against All-Trade.

13. 9:00 AM CASE NUMBER: C25-00225
CASE NAME: VALENTINA HOEVEN VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

This motion was dropped by the parties.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND HOUSING RENOVATION, LLC
TENTATIVE RULING:

Defendants Richmond Housing Renovation, LLC, Richmond Community Foundation and Richmond Community Foundation dba RCF Connects’ demurrer to the complaint is **sustained with leave to amend as to** Richmond Housing Renovation, LLC. As to Richmond Community Foundation

and Richmond Community Foundation dba RCF Connects, the demurrer is **sustained with leave to amend as to cause of action one and otherwise overruled**. Plaintiffs may file and serve a first amended complaint within 10 days from notice of entry of this ruling.

On May 23, 2024, Plaintiff Martha Cauch was injured when a cabinet fell off the wall and struck her while she was at the premises in Richmond. She is suing the moving defendants for (1) premises liability/dangerous condition of public property and (2) negligence. In cause of action four, her family members, Plaintiffs Laura Yamcauch and Amadeo Ocamp, witnessed the incident and are suing for infliction of emotional distress on a bystander.

Moving Defendants demur to causes of action one, two and four based upon the grounds that the claims fail to state facts sufficient to constitute a cause of action and are uncertain, Code of Civil Procedure section 430.10(e), (f). As the claims are all based upon essentially the same facts, Defendants' arguments apply to all three causes of action equally.

Here Plaintiffs have alleged a claim for premises liability and negligence based upon allegations that the Defendants negligently owned, operated, maintained, managed, entrusted and/or controlled the premises. (Comp. Prem L-1, Prem. L-4, Negligence ¶1.) Richmond Housing Renovation (RHR) argues that it has not owned the premises since September 7, 2016, and cannot be liable for the cabinet falling down since they did not own the property at the time. In support of this argument, RHR relies on requests for judicial notice.

RHR seeks judicial notice of three grant deeds for the property, showing transfer of ownership of the property in 2012 and 2016. (RJN ex. D-F.) "While courts cannot take judicial notice of factual representations in recorded documents, 'a court may take judicial notice of ... a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.' [Citations.]" (*Villa Zinfandel, LLC v. Bearman* (2025) 116 Cal.App.5th 848, 858.) The Court grants the request for judicial notice of the grant deeds for the property and in particular, the grant deed showing that RHR transferred title to the property to an individual on September 7, 2016. (RJN F.)

In general, "[a] defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control." [Citation.]" (*Lorenzen-Hughes v. MacElhenny, Levy & Co.* (1994) 24 Cal.App.4th 1684, 1688.) However, under the Restatement Second of Torts section 353 a "vendor of land may be held liable for a latent defect under section 353, *all* of its elements must exist: 1. that the vendor concealed or failed to disclose a condition which it knows about or has reason to know about, 2. which involves an unreasonable risk that the vendor understands or should realize, 3. which is unknown to the vendee or of which the vendee has no reason to know, and 4. which the vendor has reason to believe the vendee will not discover. Unless the vendor actively conceals the condition, the vendor may be held liable only until the vendee has had sufficient time to discover the condition and to take precautions." (*Id.* at 1689.)

Here, Plaintiffs' general allegations that RHR owned, operated, maintained, managed, and/or

controlled the property are insufficient when the grant deed shows RHR transferred their ownership in the property in 2016. Plaintiffs have not alleged any facts showing that despite transferring title, RHR continued to possess or control the property. The reasonable inference of the grant deeds and the allegations in the complaint is that RHR is being sued because they owned the premises in 2016. In that case, Plaintiffs need to allege facts showing that Restatement section 353 applies and they have not done so here.

In a footnote, Defendants note that it is unknown when the alleged dangerous condition was created, but that they have not owned it within the last 10 years, which is the statutory limitations period for latent defects. (Code of Civil Procedure section 337.715.) Defendants have not fully discussed their statute of limitations theory, however, the Court notes that Defendants RHR claims it last owned the property in September 2016 and Plaintiff filed this complaint in May 2025, which is less than 10-years since RHR owned the property.

Defendant RHR's demurrer is sustained with leave to amend.

As to Richmond Community Foundation (RCF) and Richmond Community Foundation dba RCF Connects, defendants argue that it is not a public entity, but a nonprofit public benefit corporation. The Court grants defendants' requests for judicial notice of the corporate filings (RJN ex. B and C) because they show how RCF was formed.

Plaintiffs have alleged the RCF (and RCF Connects) are public entities, but those allegations conflict with the judicially noticeable facts. Thus, Plaintiffs have not stated a claim against RCF for dangerous condition of public property. The demurrer to cause of action one is sustained with leave to amend on the failure to state a cause of action and also on uncertainty.

Defendants argue that RCF has not owned the property, but that fact is not found in the judicially noticeable documents. While Defendants have provided three grant deeds, there is no showing of the ownership of the premises since 2016.

As to the demurrer on uncertainty, the Court agrees that the complaint and judicially noticeable facts make it uncertain as to whether RCF is a public entity. As to the remaining uncertainty arguments, the Court finds that the complaint is not so uncertain that Defendants cannot respond to it.

15. 9:00 AM CASE NUMBER: C25-02582
CASE NAME: JOANNA GALVEZ VS. MENLO WESTRIDGE AFFORDABLE PARTNERS, LP
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: GALVEZ, JOANNA
TENTATIVE RULING:

Plaintiff's counsel, Robert Starr, moves to be relieved as counsel, asserting that he has lost contact with his client. He attempted contact via the phone number and email she had given him, and a certified letter to her last known address was returned.

The motion is **granted**. If plaintiff intends to pursue this lawsuit, she must attend the next case management conference (in person, by Zoom, or through new counsel) to state her intentions concerning representation or self-representation. That CMC will also be an order to show cause why the case should not be dismissed for failure to prosecute.

Plaintiff is invited to attend the hearing on this motion if she is aware of it. If she intends to do so, she must notify both the Court and Mr. Starr by telephone call, by no later than 4:00 p.m. today (Tuesday).

Given that Starr's grounds for withdrawal are not confidential and are stated in his motion papers, there is no need for a personal appearance by him for an *in camera* hearing, unless Ms. Galvez gives notice that she will be appearing.

16. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: TRUMARK HOMES

TENTATIVE RULING:

Petitioner, *in pro per*, filed this action to raise CEQA challenges to two approvals by the City of San Ramon to two amended housing development projects. The merits of those CEQA challenges are not before the Court.

The two real parties in interest in the case, joined by the City, demur to the petition on the ground that petitioner failed to exhaust administrative remedies, because he pursued no administrative appeals to the City Council from the adverse decisions of the Planning Commission. Although the first amended petition reflects that petitioner was aware of the exhaustion requirement, his asserted reasons for failing to do so are legally insufficient.

The demurrer includes an exhaustive, correct, and convincing explanation of the law governing the statutory requirement of exhaustion of administrative remedies, including any available administrative appeals, in CEQA cases. Petitioner has filed no opposition to this demurrer. He thereby effectively acknowledges and admits the correctness of the substance of the demurrer.

The demurrer of the real parties in interest and the City are therefore **sustained without leave to amend**.

18. 9:00 AM CASE NUMBER: MSC20-00575
CASE NAME: STARS HOLDING CO. VS. MEHRABI
***HEARING ON MOTION IN RE: SET ASIDE ORDER GRANTING APPLICATION FOR RIGHT TO ATTACHMENT ORDER AND QUASH THE WRIT OF ATTACHMENT BASED THEREON**
FILED BY: MEHRABI, KARIM

TENTATIVE RULING:

Before the Court is a motion by defendants to set aside the order granting application for right to

attachment order and quash the writ of attachment based thereon. For the reasons set forth, the motion is **denied as moot**.

Background

This action was filed by plaintiff Stars Holding Co. on April 6, 2020. On the same date, Stars Holding filed two applications for right to attach orders seeking writs of attachment against the defendants, Karim Mehrabi and Golam Hossein Baig, each individually and doing business as Aromas 76 and 101 Beacon aka 76 Gas Station. It appears from the Court's Odyssey files that a right to attach order was issued ex parte without a hearing on April 6, 2020. (See 4/6/2020 Rt to Attach Order.) Based on that order, two writs of attachment were issued on April 20, 2020, one against each defendant. There was no opposition to the application.

Plaintiff filed a verified first amended complaint on August 21, 2020, and then on March 21, 2022, an unverified second amended complaint (2AC) which is the operative pleading in the case. Defendants filed an answer to the 2AC on June 9, 2022. Thereafter, between January and June 2023, the Court held two case managements conferences. One CMC was held on February 10, 2023, with CMC statements filed by the parties on January 10, 2023. Another CMC was held on June 27, 2023, with CMC statements filed by the parties on June 5, 2023. The CMC statements are the only filings reflected in Odyssey in this case between January and June 2023.

The case is now scheduled for a court trial on May 4, 2026, preceded by an issue conference set for April 17, 2026, two days after the hearing scheduled on defendants' motion to vacate the attachment, and a trial readiness conference set for April 27, 2026.

Applicable Law and Analysis

The motion seeks to vacate the right to attach order and writs of attachment issued April 6, 2020 and April 20, 2020, respectively. There appears to be no dispute between the parties that those are the operative order and writs at issue.

The Court concludes that an order setting aside the right to attach order and quashing the writs of attachment are unnecessary, because the attachment has been discharged and any property subject to the writs of attachment released from the attachment by operation of law based on the passage of time since they were issued. Code of Civil Procedure section 488.510(a) provides: "Unless sooner released or discharged, any attachment shall cease to be of any force or effect, and the property levied upon shall be released from the operation of the attachment, at the expiration of three years from the date of issuance of the writ of attachment under which the levy was made." (Emphasis added.)

The statute includes procedures for the extension of the right to attach order and writs of attachment. (Code Civ. Proc. §§ 488.510(b), (c), and (d).) Under Code of Civil Procedure section 488.510(b), any motion to extend the writs of attachment had to be filed within a limited time frame before the three-year expiration of the writs under subsection (a) of that statute: "Notwithstanding subdivision (a), upon motion of the plaintiff, made not less than 10 or more than 60 days before the expiration of the three-year period and upon notice of not less than five days to the defendant whose property is attached, the court in which the action is pending may, by order filed prior to the expiration of the period and for good cause, extend the time of the attachment for a period not exceeding one year from the date on which the attachment would otherwise expire." (Emphasis added.)

The Court has reviewed its Odyssey electronic filing system for this case. The Court has not found any

record showing that plaintiff made a motion to extend the writs of attachment or that any order extending the writs of attachment was issued before the expiration of the three-year period following the issuance of the writs of attachment. (Code Civ. Proc. ¶ 488.510(b).) Therefore, by operation of law, the writs of attachment have expired. Because the writs of attachment have expired, there are no writs for the Court to quash and setting aside the right to attach order is unnecessary under the circumstances. The motion is therefore **denied as moot**.

18. 9:00 AM CASE NUMBER: MSL21-01934
CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: CANNON, LINDSEY
TENTATIVE RULING:

This is an alleged class-action suit. In a nutshell, defendant JusTours was in the business of arranging vacation travel (for student spring breaks and the like). Plaintiff alleges that JusTours accepted payment for a large number of such travel plans and then did not deliver the travel. JusTours itself has had its corporate status suspended and is no longer represented by any attorney. Its insurer Scottsdale, however, was granted leave to intervene and now stands as the functional defendant in the case.

Plaintiff Cannon seeks to amend her complaint to add a second alleged class representative, Bautista. The concern here, as Cannon and her counsel candidly acknowledge, is that Cannon has been in a long-term romantic relationship with the son of one of the attorneys serving as class counsel. The plaintiff team is accordingly concerned that there may be problems or disputes with the adequacy of her representation of the class. After investigation to identify other alleged victims of JusTour's wrongdoing, plaintiff has identified Bautista as an additional class representative having no prior connection with Cannon or class counsel.

The motion is **granted**, conditioned on plaintiffs working with defendant for a reasonable stipulated relaxation of the deadlines for a possible summary judgment motion (or, it may be, for an agreement to extend the five-year statute and vacate or move the trial date). Plaintiff may file and serve an amended complaint by the end of this week, April 17. Scottsdale will have 30 days in which to answer. In the meantime, however, plaintiff must live up to its promise to provide all relevant discovery on behalf of Bautista by April 24.

The Conflict Concerns

Scottsdale's initial response amounts to, "what's the big deal?" Scottsdale states that it has no concerns or reservations as to the adequacy of Cannon's representation of the class as class counsel, and hence there is no need to add an additional class representative.

This won't do. The Court has its own independent obligation to ensure the adequacy and independence of a class representative, even if the parties themselves purport to agree on the point. With or without Scottsdales's concession, plaintiff's counsel is quite right in assuming that the Court might well have concerns or reservations as to Cannon's independent capacity to represent the class's interests on such topics as attorney's fees and litigation costs. Conversely, there could be a concern

about class counsel being a bit too generous in proposing a class-representative bonus.

Moreover, the Court is not quite convinced that plaintiff can trust the full good faith of the defense side in not finding subtle ways of using the family romantic relationship to plaintiff's disadvantage. Even if Scottsdale doesn't expressly argue the conflict in opposition to class certification, it is not that hard to imagine the topic being mentioned at trial with a nudge and a wink, so as to suggest to the jury that Cannon is less than perfectly credible, too cozily collusive with the lawyers, or something of that kind.

Amending to Substitute or Add a Class Representative

Plaintiff is right that, in general, the courts will liberally allow amendments in putative or certified class actions to provide for substitute or additional class-representative plaintiffs, where there is or may be some concern or issue with the existing representative(s). The clearest example of this is the "pick-off" scenario, whereby defendants could indefinitely stave off class actions by the tactic of providing the full relief sought to the class representatives only. The same concern, however, can arise more broadly.

California courts regularly allow for the substitution of one class representative for another when the current class representative no longer possesses the required standing to represent the class. See *In re Tobacco II Cases* (2009) 46 Cal.4th 298, 328-329; see also *La Sala v. American Sav. & Loan Assn.* (1971) 5 Cal.3d 864, 872 ("If, however, the court concludes that the named plaintiffs can no longer suitably represent the class, it should at least afford plaintiffs the opportunity to amend their complaint, to redefine the class, or to add new individual plaintiffs, or both, in order to establish a suitable representative."); *Timlick v. National Enterprise Systems, Inc.* (2019) 35 Cal.App.5th 674, 689 (If pre-certification, a defendant offers complete relief to the named plaintiff, and if the court then concludes that the named plaintiff cannot continue to fairly represent the class, "the court should allow an opportunity to amend the complaint to redefine the class or to add additional representatives, and if amendment fails, the court should not dismiss the action without giving notice of the dismissal to the members of the putative class." (citing *La Sala*, 5 Cal.3d 864, 874). In *Best Buy Stores, L.P. v. Superior Court*, a conflict existed because the named class representative was also class counsel. *Id.* (2006) 137 Cal.App.4th 772, 774-775. The Court held that "[d]iscovery to ascertain a suitable class representative is proper," after which the court "should afford [plaintiff] the opportunity to amend his complaint, to redefine the class, or to add new individual plaintiffs, or both, in order to establish a suitable representative." *Id.* at 779 (internal citations omitted)).

Scottsdale's attempts to impeach or distinguish these settled authorities are unconvincing. Scottsdale says that the present concerns over Cannon's adequacy are less serious than (say) in an outright mootness situation such as pick-offs, which is true but insufficient to meet the broader point. It also argues that these cases deal with outright replacement of an existing class representative rather than adding a second one. Whether Cannon will or should continue to serve as a class representative is a problematic topic for future discussion. But with or without Cannon, the need to add Bautista or someone like her is obvious and serious.

It is true, as Scottsdale argues, that plaintiff has been less than impressively diligent in bringing this proposed amendment; the reasons for it have surely been obvious to capable counsel from the start. But the Court can see no bite to Scottsdale's suggestions that there is some kind of gamesmanship

going on. Apart from the timing-crunch considerations to be addressed next, it can see no significant advantage to plaintiff or detriment to defendant from the delays. And conversely, the principal timing concern for defendant has to do with the opportunity to move for summary judgment – and it may fairly be said that defendant, waiting until a trial date has been set and a certification motion is imminent, has itself been pretty damn non-diligent in getting to such a motion (assuming it isn't just bluffing about summary judgment).

Scheduling Issues

The only argument Scottsdale adduces now that has any serious bite to it is that it stands to be caught in a time crunch. Trial is set for August 17, 2026, shortly before the five-year statute runs out. Accordingly, the deadline for filing a summary judgment motion is April 22. Scottsdale says it's unwilling to stipulate to waive the five-year deadline, though it proffers no non-gamesmanship-related reason for such refusal.

Scottsdale's lead argument is that if Bautista is now allowed into the case, Scottsdale will have to seek full discovery from her. But plaintiff offers to ensure that Bautista will provide full interrogatory responses and document production within a week. Scottsdale will presumably want to depose Bautista too. Given that the substance of her claim is basically the same as Cannon's in all but the minor details, however, that is unlikely to be very difficult or to take very long.

Scottsdale's purported concern about summary judgment is more substantial, if taken seriously. Given that this case has been kicking around for years with no such motion having been pursued, and that the case isn't yet to the point of class certification, however, it's not clear how seriously it should be taken. In any event, Scottsdale's full opportunity to seek summary judgment should and can be protected by requiring, as a condition for granting this motion, that plaintiffs agree to a reasonable stipulation to alter the deadline for filing such a motion. (And as for the trial date, while the Court does not question Scottsdale's right to insist on the five-year deadline if it sees fit, the Court observes that if Scottsdale finds this chronological box too confining, it knows where to find the key.)

Law & Motion Add On

19. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION RE MICHAEL DEAN VISTNES, MD AND DEAN VISTNES, MD, INC
FILED BY: VISTNES, M.D., MICHAEL DEAN
TENTATIVE RULING:

See Line 4 above.

20. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION RE SKINSPIRIT ESSENTIAL, LLC
FILED BY: SKINSPIRIT ESSENTIAL, LLC,
TENTATIVE RULING:

See Line 4 above.